

SENATE No. 614

The Commonwealth of Massachusetts

PRESENTED BY:

Edward J. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote the future success of mattress recycling in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Edward J. Kennedy</i>	<i>First Middlesex</i>	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/5/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>6/3/2025</i>

SENATE No. 614

By Mr. Kennedy, a petition (accompanied by bill, Senate, No. 614) of Edward J. Kennedy and Dylan A. Fernandes for legislation to promote the future success of mattress recycling in the Commonwealth. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote the future success of mattress recycling in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 21H of the General Laws is hereby amended by
2 inserting the following definitions:

3 "Brand" means a name, symbol, word or mark that attributes a mattress to the producer of
4 such mattress;

5 "Commissioner" means the Commissioner of the Department of Environmental
6 Protection;

7 "Covered entity" means any political subdivision of the state, mattress retailer, permitted
8 transfer station, waste-to-energy facility, health care facility, educational facility, military base or
9 commercial or nonprofit lodging establishment that possesses a discarded mattress that was used
10 and discarded in this state. "Covered entity" does not include any renovator, refurbisher or any
11 person who only transports a discarded mattress;

"Department" means the Department of Environmental Protection;

"Discarded mattress" means any mattress that a consumer discarded, intends to discard or abandoned in the state;

"Energy recovery" means the process by which all or a portion of solid waste materials are processed or combusted in order to utilize the heat content or other forms of energy derived from such solid waste materials;

"Foundation" means any ticking-covered structure that is used to support a mattress and that is composed of one or more of the following: A constructed frame, foam or a box spring, whether stationary, adjustable or foldable. "Foundation" does not include any bed frame or base made of wood, metal or other material that rests upon the floor and that serves as a brace for a mattress;

"Institution" means established organizational entities including, but not limited to health care facilities, higher education facilities, military bases, public and private correctional facilities and jails, assisted living facilities, and group homes;

"Mattress" means any resilient material or combination of materials that is enclosed by ticking, used alone or in combination with other products, and that is intended for or promoted for sleeping upon. "Mattress" includes any foundation and any used or renovated mattress. "Mattress" does not include any mattress pad, mattress topper, sleeping bag, pillow, car bed, carriage, basket, dressing table, stroller, playpen, infant carrier, lounge pad, crib or bassinet mattress, crib bumper, liquid or gaseous filled ticking, including any water bed and any air

mattress that does not contain upholstery material between the ticking and the mattress core, and upholstered furniture, including a sleeper sofa;

"Mattress core" means the principal support system that is present in a mattress, including, but not limited to, springs, foam, air bladder, water bladder or resilient filling;

"Mattress recycling fee" means the amount added to the purchase price of a mattress sold to a consumer or to an ultimate end user in this state that is necessary to cover the cost of collecting, transporting and processing discarded mattresses pursuant to the mattress recycling program;

"Mattress topper" means any item that contains resilient filling, with or without ticking, that is intended to be used with or on top of a mattress;

"Non-profit social enterprise organization" means an organization that sells goods and services and enhances economic development and environmental justice through work opportunities in mattress recycling for individuals facing significant barriers to employment;

"Performance goal" means a metric approved by the department to measure, on an annual basis, the performance of the mattress recycling program, taking into consideration technical and economic feasibilities, in achieving continuous, meaningful improvement in improving the rate of mattress recycling in the state and any other specified goal of the program. At a minimum, goals must include collection and recycling rates and public awareness;

"Producer" means any person, irrespective of the selling technique used, including that of remote sale, who manufactures or renovates a mattress that is sold, offered for sale or distributed in the state under the producer's own name or brand. "Producer" includes the owner of a

trademark or brand under which a mattress is sold, offered for sale or distributed in this state, whether or not such trademark or brand is registered in this state, and any person who imports a mattress into the United States that is sold or offered for sale in this state and that is manufactured or renovated by a person who does not have a presence in the United States;

"Renovate" or "renovation" means altering a mattress for the purpose of resale including any one, or a combination of, the following: Replacing the ticking or filling, adding additional filling, or replacing components with new or recycled materials. "Renovate" or "renovation" does not include the stripping of a mattress of its ticking or filling without adding new material, the sanitization or sterilization of a mattress without otherwise altering the mattress, or the altering of a mattress by a renovator when a person retains the altered mattress for personal use, in accordance with regulations of the Department of Consumer and Business Services;

"Renovator" means any person who renovates discarded mattresses for the purpose of reselling such mattresses to consumers;

"Retailer" means any person who sells mattresses to a consumer or to an ultimate end user in this state or offers mattresses to a consumer in this state through any means, including but not limited to remote offerings such as sales outlets, catalogs or the Internet.

"Sanitization" means the direct application of chemicals to a mattress to kill human disease-causing pathogens;

"Sale" means the transfer of title of a mattress for consideration, including, but not limited to, the use of a sales outlet, catalog, Internet web site or similar electronic means to a consumer or to an ultimate end user in the state;

"Sterilization" means the mitigation of any deleterious substances or organisms, including human disease-causing pathogens, fungi and insects from a mattress or filling material using a chemical or heat process;

"Ticking" means the outermost layer of fabric or material of a mattress. "Ticking" does not include any layer of fabric or material quilted together with, or otherwise attached to, the outermost layer of fabric or material of a mattress; and

"Upholstery material" means all material, loose or attached, between the ticking and the core of a mattress.

"Waste hauler" means any person who provides commercial, institutional, and residential solid waste removal services, including the removal and end-of-use management of discarded mattresses, in the state under the waste hauler's own name and brand.

SECTION 2. Chapter 21H of the General Laws is hereby amended by inserting after Section 7 the following section:- Mattress Recycling Program

Sec. 8. (a) Within 300 days following enactment of this act, the Department shall develop a written plan to establish a state-wide mattress recycling program, as described in this subsection. Such mattress recycling program shall offer program services, incentives, and a variety of other strategies to best address existing mattress recycling needs and coverage gaps across all regions in the commonwealth; expenses associated with this program will use funding from a new mattress recycling fee structure, as outlined in the department's plan, that is sufficient to cover the costs of operating and administering the program. The program shall begin no later than 24 months after the enactment of this legislation.

(b) Pursuant to the program, recycling shall be preferred over any other disposal method for mattresses, to the extent that recycling is technologically feasible and economically practical. Reuse is also prioritized and the plan shall make reuse eligible for compensation reimbursement incentives offered by the department.

(c) The plan submitted pursuant to subsection (a) of this section shall: describe the fee structure for the program and include a proposed budget; establish performance goals for the program that clearly outline the maximum feasible level of recovery and recycling of used mattresses in support of the Commonwealth's overall waste diversion goals as outlined in the department's solid waste master plan; a timeline for implementing and achieving convenient access to the program; detail how the program will promote the recycling of discarded mattresses consistent with the state's solid waste management hierarchy; include a description of the public education program; propose a mechanism to mitigate the costs associated with collection of discarded mattresses that are illegally dumped, which may include but need not be limited to proposals for funding of clean-up activities, for education and outreach or for studies to evaluate the causes of illegal dumping; the department shall establish and implement a fee structure that covers, but does not exceed, the costs of developing the plan described in this section, operating and administering the program described in subsection (a) of this section. Revenue from any fees collected shall be remitted to the department. If the Secretary of Energy and Environmental Affairs deems it necessary to carry out the goals of strengthening mattress recycling services across the Commonwealth, there shall be established and set up on the books of the Commonwealth a separate fund to be known as the Mattress Recycling Trust Fund that has the primary and only goal of funding recommendations that are outlined in the Plan; The department, in consultation with the Mattress Recycling Council and International Sleep

Products Association and others, shall determine the rules and procedures that are necessary and proper to implement the collection of a fee in a fair, efficient, and lawful manner.

(d) During the third year of implementing a mattress recycling program under an approved plan, the department shall fund a study that examines (i) how the mattress recycling program can incentivize the reduction of toxics and resources (e.g., energy and water) associated with mattress production; incentivize the use of post-consumer recycled content in mattress; and discourage the use of mattress materials that pose challenges for the recycling of discarded mattresses; and (ii) the scope of discarded mattresses in this state that are not being collected as part of the department's mattress recycling program and recommendations on how to direct the discarded mattresses to, and include them, in the department's program. And (iii) In consultation with the mattress program advisory committee and a minimum of three other community organizations invited by the advisory committee, a study evaluating the most effective methods of providing discarded mattress collection services to low-income individuals, environmental justice populations, municipalities with populations of less than 5,000 residents, and multifamily housing structures; Results of the study will be used to establish any changes to the fee structure or overall program design. The department shall maintain all records relating to the program for a period of not less than three years.

(e) The department shall include in its plan a new innovation grant program to provide funding to support eligible entities to carry out research and new pilot projects, including the purchase of equipment and capital building expenses, aimed at advancing the goal of increased sustainability for the field of mattress recycling. Through this grant program, the department shall focus on supporting innovations that particularly advance recycling related to materials within the mattress that are most challenging to recycle; Eligible services shall include research

and implementation related to material processing innovations or the creation of new products made from recycled mattress materials.

(f) The department shall include in its plan, and all future plans, the establishment of a new employment social enterprise impact pilot program based on written recommendations provided by the Commissioner. The goal of the program will be to foster the sustainability of nonprofit employment social enterprise organizations that sell goods and services and enhance economic development and environmental justice through the provision of work opportunities in mattress recycling for individuals facing significant barriers to employment. The department shall include in its plan the most recent language for the employment social enterprise impact pilot program that has been previously approved in the state's General Appropriations Act.

(g) The Commissioner of the Department of Environmental Protection shall appoint a mattress recycling program advisory committee who shall provide guidance, feedback, and recommendations on the formation and approval of the plan, in addition to their guidance as it relates to the ongoing implementation of the program; The advisory committee shall have its first meeting no later than 60 days after enactment of this legislation; Prior to the approval of the Plan, the committee shall meet on a regular basis, for no less than 6 months to carry out its focus on providing guidance, feedback, and recommendations on the establishment of the plan that will be used to design the offering of the new mattress recycling program; After the approval of the Plan and the initial establishment of the mattress recycling program, the Committee shall meet no less than once every quarter to provide feedback and recommendations as it relates to the implementation of the program, including the review of the Commissioner's annual report.

The advisory committee shall advise the department, including delivering written recommendations regarding: The review of any plan for the development and implementation of a mattress recycling program; the review of any amendment to a plan; the review of annual reports submitted by the department. The department may select and hire a third-party facilitator for the Advisory Committee, which shall be included among the administrative costs of the program, to be paid by the mattress recycling fee.

The advisory committee shall be comprised with membership representation from the Commissioner of the Massachusetts Department of Environmental Protection, or his/her designee, who shall serve as chair of the committee; a representative from MassRecycle; two representatives from two different covered entities; a representative from a Massachusetts-based mattress recycling organization; a representative of an environmental nongovernmental organization; a representative of a social enterprise nonprofit organization involved in mattress recycling; and a representative of the International Sleep Products Association. The commissioner shall place great emphasis on selecting a diverse group of advisory committee members. The attorney general shall appoint one member to the advisory committee with expertise in consumer protection.

(h) Nothing in this section shall prohibit the department from administering existing mattress recycling programs.

(i) Prior to the approval of this Plan, the department shall solicit public input regarding end-of-use mattress recycling needs, gaps in departmental resource allocation and opportunities for increased programmatic support for municipalities with populations of less than 5,000 throughout the Commonwealth. The department shall (i) hold not less than 4 public hearings in

geographically-diverse municipalities across the commonwealth, 2 of which shall be held in rural municipalities, to receive public testimony on the end-of-use mattress management needs of small and rural municipalities, and shall provide for remote participation; and (ii) solicit and accept written and electronic testimony submissions from the public. The department shall solicit public comment for at least 30 days and shall summarize the public input it receives in the needs assessment.

(j) Not later than October fifteenth of each year, the department shall submit an annual report to the clerks of the senate and house, the chairs of the senate and house committees on ways and means, and the chairs of the joint committee on environment, natural resources and agriculture; The Commissioner shall post such annual report on the department's Internet web site. The Commissioner shall review and approve the yearly annual report. Such report shall include: Information on the number and tonnage of discarded mattresses collected pursuant to the mattress recycling program; a summary of the public education that supports the program; an evaluation of the effectiveness of methods and processes used to achieve performance goals of the program, information on progress made toward achieving the goals, an explanation of why any goals were not met during the previous calendar year and any efforts that will be taken to improve progress toward meeting the goals in the future, if applicable; recommendations for any changes to the program; the number of discarded mattresses that were illegally dumped as reported to the department, an analysis of how the data required by this paragraph has changed over time and strategies the department will take to address discarded mattresses that are not included in the program and discarded mattresses that are illegally dumped; and the mattress recycling program's costs and revenues for the previous calendar year.